

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY,
FLORIDA**

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.
Plaintiffs,
vs.
MARC M. MOSZKOWSKI
Defendant.

Case No.: 2018 CA 000543
Division: "E"

**NOTICE OF FILING EXHIBIT "A": SELF-IMPEACHMENT BY AFFIDAVIT
(RUS HOWARD)**

Defendant, appearing pro se, hereby gives notice of filing the attached exhibit titled:

**“Exhibit "A"– Case No. 2018 CA 000543
Self-Impeachment by Affidavit (Rus Howard).”**

This exhibit compiles three sworn statements made by Plaintiff’s principal, Rus Howard, in affidavits filed in this case, alongside their legal significance. Each statement, taken from the record, contains admissions that:

1. Confirm Defendant’s continuous directorship of DeepGulf, Inc.,
undermining any claim of valid Board authorization for this lawsuit;

2. Establish actual or constructive knowledge of key financial transactions long before this action was filed, triggering the statute of limitations; and
3. Present implausible or bad-faith explanations for seven-figure payments clearly identified in corporate financial records.

This Notice is submitted to ensure that these admissions and their implications are preserved in the record for all purposes, including appellate review.

Respectfully submitted on this 6th day of August, 2025.

Marc Moszkowski, Pro Se
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CERTIFICATE OF SERVICE

I hereby certify that, on this 6th day of August, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Maczkowski

Exhibit "A"— Case No. 2018 CA 000543
Self-Impeachment by Affidavit (Rus Howard)

The following sworn statements by Plaintiff's principal, Rus Howard, directly contradict his claims and impeach his credibility. Each is drawn from affidavits filed under oath in this case.

1. Admission of Continuous Directorship

"Since the formation of DeepGulf, Inc. to the present date, Marc M. Moszkowski has been a director of DeepGulf, Inc."

Legal Significance:

- Sworn admission that Defendant was a director at all relevant times, including when the lawsuit was filed.
- As a sitting director, Defendant was entitled to notice, participation, and a vote on any decision to sue; failure to do so invalidates any alleged **Board authorization**.
- The lawsuit was initiated without the knowledge or participation of a director holding more than half of the combined 90% shareholder block between Defendant and Howard — a fundamental defect in standing.

2. Admission of 2014 Email Detailing \$345,000 Payments

“In discovery, DeepGulf, Inc. was provided an email apparently from Marc M. Moszkowski to me dated March 6, 2014. I do not specifically recall seeing that email. I do not read, write or speak French and the attachments have no significance to me.”

Legal Significance:

- Sworn admission that the email existed and was in Plaintiff’s possession in 2014, years before suit, while the same email received warm acknowledgement from his assistant, not once, but twice.
- Anyone acting with a modicum of good faith would immediately recognize the absurdity of claiming that an inability to read French prevented seeing the significance of a **\$345,000** bank statement in U.S. dollars with English language references — particularly for an Ivy League-educated professional — when his non-Ivy League assistant had no difficulty whatsoever understanding it and warmly acknowledged receipt at the time.
- Claim that it was only “provided in discovery” in 2018 is false — the email was in his records from the moment it was sent.

- Howard's portrayal of himself as a disorganized and uninformed professional— despite holding a Cornell MBA — who fails to read or safeguard critical emails is not a legal defense; it is an admission of gross mismanagement.
- Losing one's own archives due to poor data management, and then using that as an excuse to claim lack of knowledge, constitutes willful ignorance, not a statute-of-limitations reset.
- The attachments detailed **\$345,000** in payments — central to Plaintiffs' claims — making his claim of "no significance" to them implausible and indicative of bad faith.
- Actual or constructive knowledge in 2014 triggers the statute of limitations; the April 2018 filing was too late.

3. Admission of 2011 and 2012 Financial Statements and \$1,304,764.22 in "Directors Salaries"

"On January 25, 2011 and May 25, 2012, I did receive emails from Marc M. Moszkowski with financial statements attached. I had no reason to believe that the 'Directors Salaries' were paid to the members of the Board of Directors of Toke Oil and Gas, S.A. or to Marc M. Moszkowski. These salaries could have been paid to employees... carrying the title of 'Director.'"

Legal Significance and Implausibility:

- Sworn admission of receiving detailed financial statements years before suit was filed, showing **\$1,304,764.22** in “Directors Salaries.”
- Said detailed financial statements were **expressly incorporated by Rustin Howard into the accounts of DeepGulf, Inc.** as shown in a later-issued Private Placement Memorandum circulated to investors.
- Attempting to redefine “*Directors*” as possibly unrelated employees, in sworn testimony, is internally contradictory and implausible.
- As a director and corporate officer, Howard had a fiduciary duty to investigate any seven-figure disbursement to “*Directors*” — especially when Defendant was one of them.
- Claiming such a sum carried “no reason to believe” it related to actual directors demonstrates either:
 - a) **Deliberate bad faith** — consciously ignoring obvious financial facts to preserve a litigation narrative, or
 - b) **Gross dereliction of fiduciary duty** — failing to inquire about the largest line item in the statements.
- Treating **\$1,304,764.22** as insignificant is not credible corporate oversight; it is evidence of willful blindness or fabrication.

- Either scenario undermines credibility and confirms Plaintiff had actual or constructive knowledge years before suit, further reinforcing the statute of limitations bar.

Summary:

These three admissions — all from Plaintiff's own sworn affidavits — independently establish:

1. Lack of valid Board authorization to sue,
2. Statute of limitations expiry long before filing, and
3. Implausible, bad-faith explanations for clear financial records.

For any court to disregard these statements requires ignoring sworn admissions that cut to the core of standing, timeliness, and credibility.

The sworn contradictions set forth in this exhibit have been in the record through multiple pleadings and have never been rebutted.

If these contradictions are not addressed in the Court's rulings, it would necessarily follow that either:

- a) they have not been reviewed, or

b) they have been reviewed and disregarded for reasons that do not appear in the record and are incompatible with the standards of impartial judicial decision-making.

August 6th, 2025

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A handwritten signature in blue ink, reading "M. Moszkowski". The signature is written in a cursive, flowing style.